

ORDINANCE NO. _____

ENTITLED: “PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM MUB MIXED-USE BUSINESS EMPHASIS TO CB COMMUNITY BUSINESS FOR LOTS 1 AND 2, BLOCK 1, SIMPSON ESTATES, CHEYENNE, WYOMING (LOCATED AT THE SOUTHWEST CORNER OF THE INTERSECTION OF COLLEGE DRIVE AND CHEYENNE STREET).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owners of the property described herein have applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on June 4, 2018, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lots 1 and 2, Block 1, Simpson Estates, Cheyenne, Wyoming is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

STAFF REPORT - SUMMATION

Simpson Estates Zone District Map Amendment Process

CASE NUMBER(s): UDC-18-00146-01

SUBDIVISION CODE: SMSE

PREPARED BY: Seth Lloyd

MEETING DATES:

Planning Commission:	June 4, 2018	
City Council:	June 11, 2018	1 st Reading
Public Service Committee:	June 19, 2018	
City Council:	June 25, 2018	2 nd Reading
Public Service Committee:	July 3, 2018	
City Council:	July 9, 2018	3 rd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff:

- Master Application; Zone Change Map; List of neighbors to be notified; Summary of why proposal is being sought; Draft Neighbor Notification Letter
- Neighbor Notification Letter – received 5/10/2018 (sent to fulfill notification requirements)

PLANNING COMMISSION RECOMMENDATION: At their regular meeting on June 4, 2018, the City of Cheyenne Planning Commission recommended approval of the zone change request from MUB Mixed-use Business Emphasis to CB Community Business by a vote of 5-0.

RECOMMENDATION: Staff recommends approval of the zone change request from MUB Mixed-use Business Emphasis to CB Community Business.

STAFF REPORT

Simpson Estates **Zone District Map Amendment Process**

CASE NUMBER(s): UDC-18-00146-01 **SUBDIVISION CODE:** SMSE
PREPARED BY: Seth Lloyd
PUBLIC HEARING: June 4, 2018 (Planning Commission)

OWNER(s): Albert N. Simpson (307) 634-8431
300 Gardenia Drive
Cheyenne, WY 82009

AGENT: Ginger Brown (307) 742-7425
Coffey Engineering & Surveying
902 S. 3rd Street
Laramie, WY 82070

PROJECT: Simpson Estates Zone Change

WORK DESCRIPTIONS: A zone change request from MUB Mixed-use Business Emphasis to CB Community Business for Simpson Estates

LOCATION:

1. Legal Description: Lots 1-2, Block 1, Simpson Estates.
2. Location: west of and adjacent to College Drive, north of Pershing Boulevard.
3. Address: unaddressed

SIZE: 1.03 acres

CURRENT ZONING: MUB Mixed-use Business Emphasis
PROPOSED ZONING: CB Community Business
EXISTING LAND USE: Vacant
PROPOSED LAND USE: Commercial (Automobile Service Repair)

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Civic (Assembly), Low-density Residential	MUB, MR	City
South	Service (General), Low-density Residential	MUB	City
East	Vacant	CB	City
West	Service, Limited Industrial	MUB	City

EXECUTIVE SUMMARY:

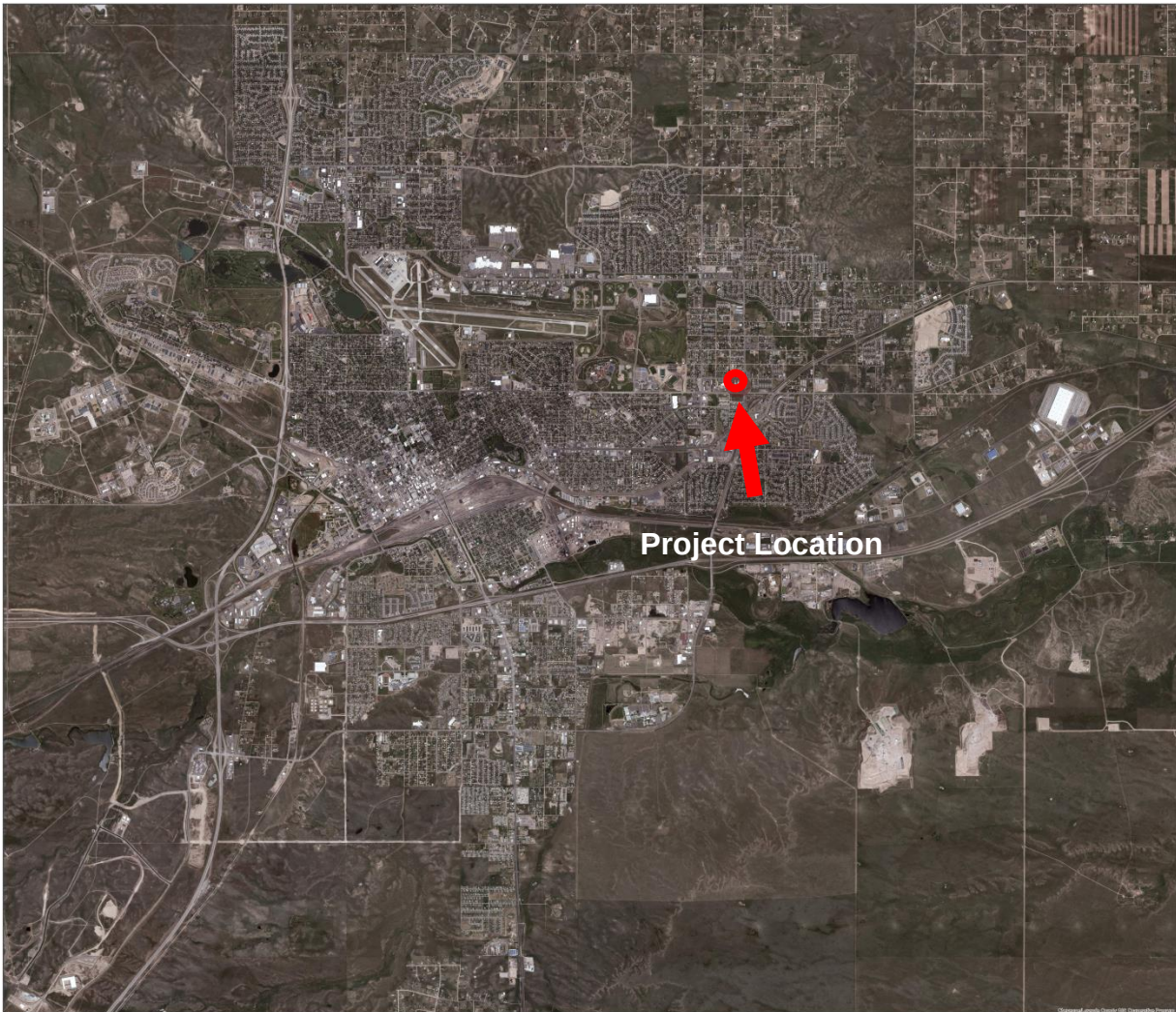
This zone change application proposes changing a land from MUB Mixed-use Business Emphasis to CB Community Business. This land totals about 1.03 acres. This land is currently vacant, and the applicant proposes developing the property with an automobile service use (specifically, a car wash).

The Comprehensive Plan and the Unified Development Code support regional-serving commercial uses at this site. PlanCheyenne specifically encourages MUB and CB zoning for the activity center located at College and Pershing. MUB is the current zone and CB is the proposed zone.

MUB zoning is intended for areas with small blocks, a high degree of pedestrian amenities, and buildings built near the street. CB zoning is intended for regional-serving commercial areas, automobile-oriented development, and buildings setback from the street. The blocks in this area are larger and the current commercial development in this area (between Cheyenne Street and Pershing) match the development patterns anticipated by areas zoned CB. By zoning this parcel CB, the development on this site will better match the existing development in the vicinity. The proposed CB zone is more suitable to this site than the existing MUB zoning.

Due to meeting the review criteria of Section 2.2.1.d of the Cheyenne Unified Development Code, staff recommends approval of this zone change.

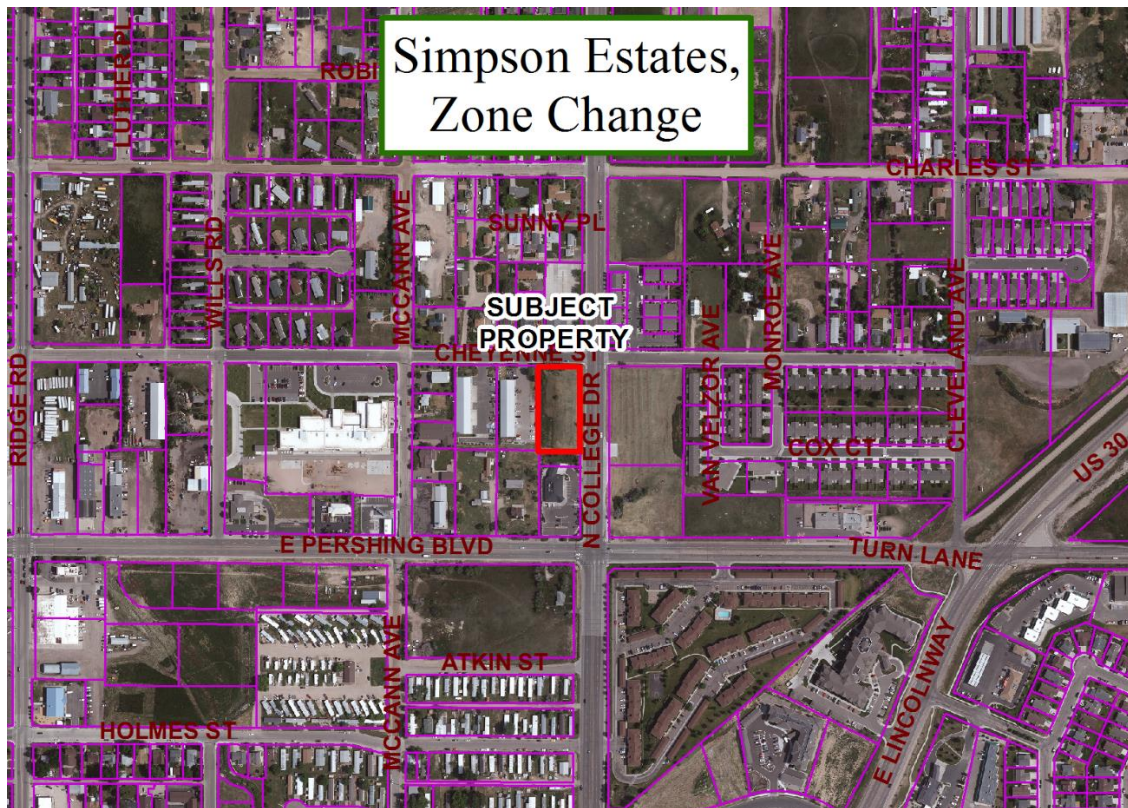
LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting subject property located southwest of the intersection of College Drive and Cheyenne Street.

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEWS OF SUBJECT PROPERTY:



Photograph #1 – Image of the subject property from the intersection of Cheyenne Street and College Drive, facing southwest.

Source: Development Office



Photograph #2 – Image of the subject property from Cheyenne Street, west of College Drive, facing east.

Source: Development Office

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria of Section 2.2.1.d:

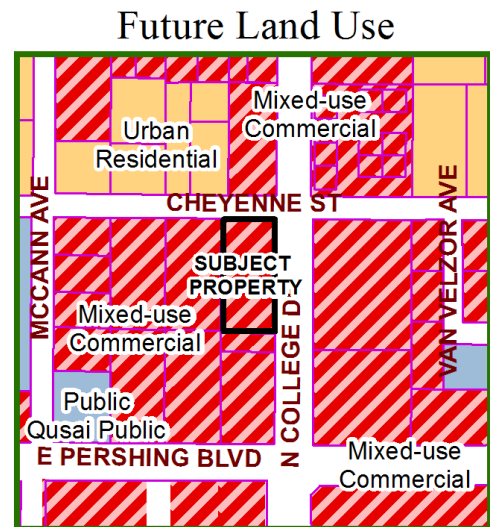
1. PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

PlanCheyenne is supportive of this zone change.

Principle 1.4 is supportive of this zone change, as it encourages revitalization and infill development which maximizes existing infrastructure. Policies within PlanCheyenne encourage concentrating commercial uses in activity centers, this property is in the Pershing/College activity center and will keep commercial development close to a major intersection.

The future land use map designates this area as Mixed-use Commercial Emphasis. This mixed-use future land use designation is intended to develop with primarily commercial uses with secondary residential uses, with the commercial uses ideally servicing the community. The current MUB Mixed-use Business Emphasis zone is the suggested zone for this future land use designation. This area is also designated as a Mixed-use Commercial Activity Center. Mixed-use Commercial Activity Centers are intended to develop with a mix of commercial uses with some housing. The CB and MUB zones are both considered appropriate zones for Mixed-use Commercial Activity Centers.

With the intersection of College and Pershing anticipated to develop with commercial uses which serve a larger area, the CB zone is an appropriate zone for this area.



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS Cooperative Program

2. SURROUNDING AREA - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

The proposed zoning designation is compatible with nearby properties as it matches some of the commercial zoning in the area and as nearby blocks include CB commercial-style development in the MUB zone. Under modern standards, the MUB zone is intended to develop with commercial buildings near the street and parking to the side or rear. CB zoning anticipates development with parking and vehicle activities in the front with the building in the rear. The commercially developed properties to the east, west, and south all match the anticipated development patterns of the current CB zone better than the anticipated development patterns of the current MUB zone. While nearby properties are zoned MUB, the development of this site in a CB style would be compatible with the surrounding area.

The perimeter of this zone change proposal is approximately 1100 linear feet, of this total approximately:

- 67.1% is contiguous to area currently zoned MUB (south, west, north – across Cheyenne Street)
- 31.1% is contiguous to area currently zoned CB (east – across College Drive)
- 1.9% is contiguous to area currently zoned MR (northwest – across Cheyenne Street)

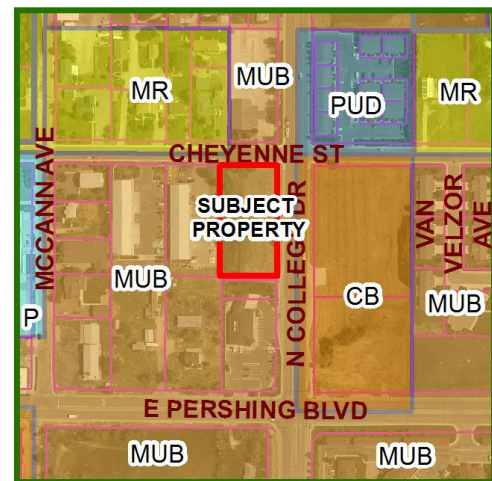
3. ZONING: BASIC STANDARDS & USES - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.*

The property is able to develop under the standards and uses of the MUB zone district. The MUB zone allows a variety of uses, but automobile-centered businesses in the MUB zone require a conditional use approval. MUB zoning is intended for areas with smaller blocks and a pedestrian-scale environment. Buildings in the MUB zone are intended to be placed closer to the street.

The property is also able to develop under the standards and uses of the CB zone district. CB zone is intended for regional, auto-oriented commercial development with buildings setback from the street. Most automobile-centered businesses are a use-by-right in the CB zone district. CB zoned areas can have larger blocks.

While the area around this site has a well-connected street network, the block sizes are large and much of the commercial development south of Cheyenne Street reflects a CB-zone style of development. This property appears to more suitable to develop under the proposed CB zone than the current MUB zone.

Zone Districts



Map #4 – Zoning Districts
Source: Cheyenne/Laramie County GIS
Cooperative Program

4. SUBDIVISION STANDARDS - *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.*

The applicant is proposing this zone change without proposing any changes to the streets or blocks. This neighborhood has an established street network. The development is along College Drive, and access to this property may be limited by WYDOT. This zone change does not negatively affect the ability of this land and the surrounding neighborhood to meet any of the other standards found in Article 4.

5. ZONING: INTENT, APPLICABILITY, & DESIGN OBJECTIVES - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

The CB zoning district is intended to develop with moderate to large scale businesses and to serve multiple neighborhoods. The properties in this area of the community allow for moderate-scale commercial operations which could service multiple neighborhoods. A minor landscape buffer would be required between redevelopment on this site and the adjoining MUB zoned parcels. This land is able to meet the design objectives of the CB zone.

6. ZONING: FUTURE DEVELOPMENT - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

The applicant is proposing rezoning this parcel with the intent to use a vacant parcel for commercial use. Any commercial development on this site would be able to mirror the existing commercial development patterns in the area. While this property could easily develop with a commercial use meeting CB zoning standards, other specific development proposals may prefer MUB-style development patterns. By changing from MUB to CB, this property would only be able to develop with commercial uses, removing the possibility of the property developing with multi-family development.

7. REVIEW – *The review and recommendations of other reviewing bodies.*

Reviewing Agencies with Comments:

- Development (Susana Montana)
 - o **(FYI)** The CB zoning would best accommodate the proposed car wash footprint and building design.
- Development (Seth Lloyd)
 - o **(FYI)** The parcel contained in this proposed zone change is suitable to develop in either the current MUB zone or the proposed CB zone. This property is also able to support the able to meet the intent and applicability of both zone districts.
- Metro Planning Office (Tom Mason)
 - o **(FYI)** College Dr. is a principal arterial and access should be taken from a lesser classified street. WYDOT will have the final say on where accesses will be allowed.
- Urban Planning (Seth Lloyd)
 - o **(FYI)** Property is designated as Mixed-use Commercial and as a Mixed-use Commercial Activity Center by PlanCheyenne. These areas are anticipated to develop primarily with a mix of commercial uses adjacent to arterial streets - with residential and civic uses as secondary uses.
 - o **(FYI)** The MUB zone is the most appropriate zone for areas designated Mixed-use Commercial, but Mixed-use Activity Centers are anticipated to include either CB or MUB zoning. This parcel is adjacent to parcels zoned CB across College Drive. CB zoned parcels are also found within 1/4 mile to the southwest and north of this parcel.

- WYDOT (Randy Griesbach)
 - o **(FYI)** Comments were entered under UDC-18-00146 Administrative Plat/Replat. No comments specific to zone change.

Reviewing Agencies without Comments:

- City Engineer (Amy Allen)
- Engineering Department – General (Mark Escobedo)
- Engineering Department – GIS/Tech (Gary Stogsdill)
- Metro Planning Office (Nancy Olson)
- Public Works (Nathan Beauheim)
- Urban Planning (Richard Zita)

Reviewing Agencies not Responding:

- None

Other Comments Received:

- None

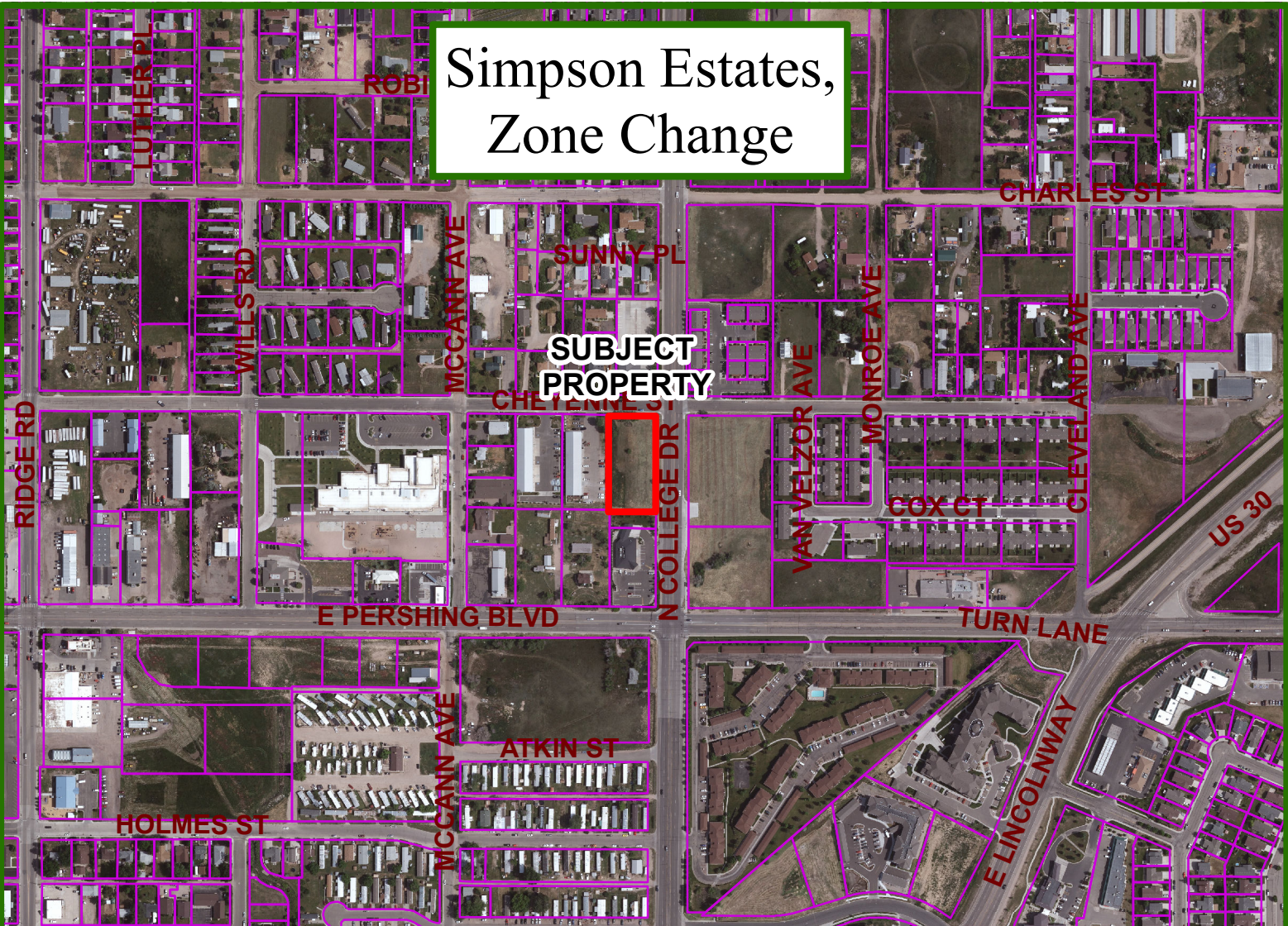
8. PUBLIC HEALTH, SAFETY, AND WELFARE – *Whether the application will harm the public health, safety or general welfare.*

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

Attachments: Aerial Map
 Zone Change Map

cc: Owner
 Agent/Applicant
 File

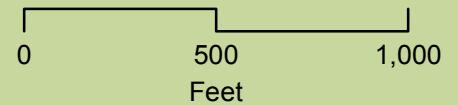
Simpson Estates, Zone Change



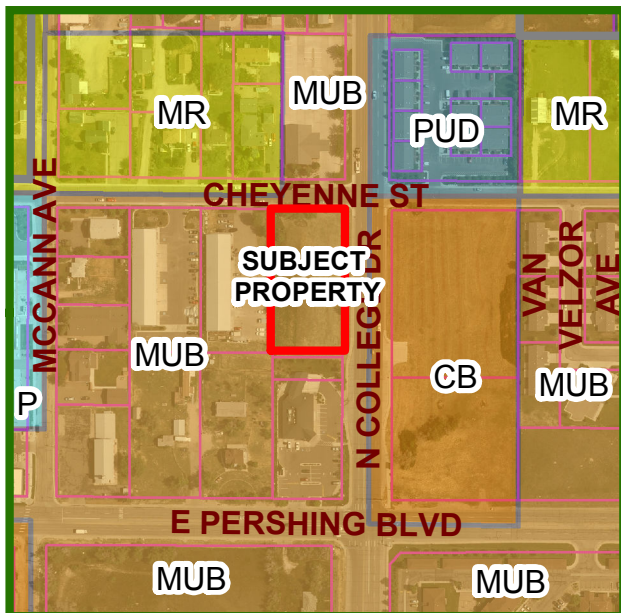
Application Number
Zone Change
UDC-18-00146-01

Applicant: Albert N. Simpson
Agent: Ginger Brown
Coffey Engineering & Surveying

Scale applies to
above map only

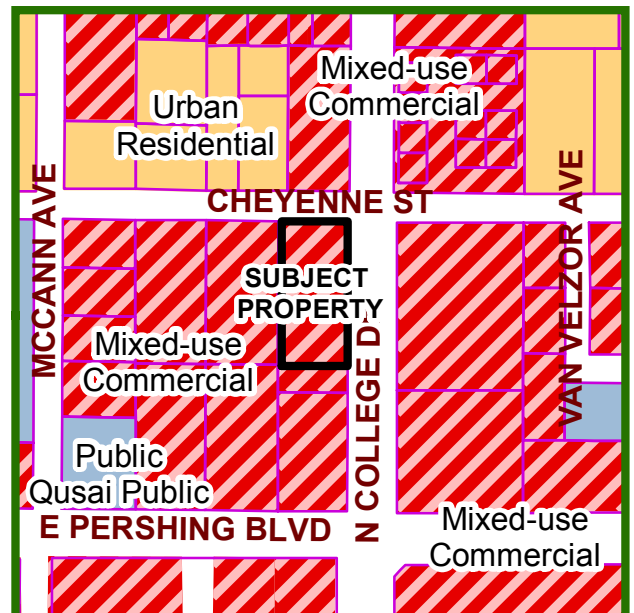


Zone Districts



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Future Land Use



ZONING CHANGE MAP
LOTS 1 AND 2 BLOCK 1
SIMPSON ESTATES
SEC. 27, T14N, R66W, 6TH PM.
TARAHIE COUNTY, WYOMING

[illegible]

OWNER:
ALBERT N. SIMPSON
300 GARDENIA DRIVE
CHEYENNE, WYOMING 82009

SITE SURVEYED BY:
COFFEY ENGINEERING & SURVEYING
902 S. 3RD STREET
LARAMIE, WYOMING 82070

NOTES:

[illegible]